

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
TAMARA ORTIZ, JOSE CASTRO, and MARC
CHARLOTTEN,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER
STEVEN DIPPOLITO, Shield No. 12994, LIEUTENANT
CHRISTOPHER SCHMIDT, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Plaintiffs designate New York
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 25, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiffs
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
P.O. Steven Dippolito, Shield No. 12994, Patrol Boro Manhattan North Task Force, 151
West 100th Street, NY, NY 10025
Lieutenant Christopher Schmidt, Patrol Boro Manhattan North Task Force, 151 West
100th Street, NY, NY 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TAMARA ORTIZ, JOSE CASTRO, and MARC
CHARLOTTEN,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEVEN DIPPOLITO, Shield No. 12994, LIEUTENANT
CHRISTOPHER SCHMIDT, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs, TAMARA ORTIZ, JOSE CASTRO, and MARC CHARLOTTEN, by their
attorney, Jacobs & Hazan, LLP, as and for their Complaint herein, alleges upon information and
belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On
June 27, 2012, at approximately 12:30 a.m., plaintiffs, TAMARA ORTIZ, JOSE CASTRO, and
MARC CHARLOTTEN, while lawfully present in the vicinity of 2224 Second Avenue, New
York, New York, were subject to an unlawful assault, battery, false arrest and false
imprisonment, and malicious prosecution by the defendant New York City Police Officers.
Plaintiffs were deprived of their constitutional and common law rights when the individual
defendants unlawfully assaulted, battered, falsely arrested and falsely imprisoned, maliciously
prosecuted plaintiffs, and used excessive force against plaintiffs in violation of the Fourth and
Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff, TAMARA ORTIZ is a resident of the State of New York.

3. Plaintiff, JOSE CASTRO is a resident of the State of New York.
4. Plaintiff, MARC CHARLOTTEN is a resident of the State of New York.
5. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994, is and was at all times relevant herein assigned to Patrol Boro Manhattan North Task Force.
7. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994 is being sued in his individual and official capacity.
8. LIEUTENANT CHRISTOPHER SCHMIDT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
9. LIEUTENANT CHRISTOPHER SCHMIDT is and was at all times relevant herein assigned to Patrol Boro Manhattan North Task Force.
10. LIEUTENANT CHRISTOPHER SCHMIDT is being sued in his individual and official capacity.
11. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
12. Police Officers John Does #1-10 are being sued in their individual and official capacities.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
14. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claims were filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On June 27, 2012, at approximately 12:30 a.m., plaintiffs were lawfully in front of their apartment building located at 2224 Second Avenue, New York, New York.

21. While plaintiffs were lawfully in front of their apartment building, they observed an individual being arrested.

22. Plaintiff, Jose Castro attempted to videotape the police officer arresting the individual.

23. One of the defendant police officers saw that plaintiff, Jose Castro was attempting to videotape the arrest, and knocked the iPhone out of Jose's hand.

24. Plaintiff, Tamara Ortiz took out her iPhone and attempt to record the incident.

25. As soon as the police officer observed plaintiff, Tamara Ortiz attempting to record him, the defendant police officer smacked the iPhone out of her hand, and stomped on the iphone breaking it.

26. Plaintiff, Tamara Ortiz attempted to bend down to pick up her broken iPhone.

27. When the officer saw Plaintiff, Tamara Ortiz bend down to pick up her iphone, the defendant police officer punch her in the left side of her face.

28. Several minutes later, several NYPD squad cars pulled up to the scene, and defendant Lieutenant Schmidt exited one of the cars.

29. Plaintiffs attempted to explain to defendant Lieutenant Schmidt that one of the police officers punched plaintiff, Tamara Ortiz, who as pregnant at the time, in the face.

30. Thereafter, without provocation or legal justification, several defendant police officers defendants, including defendant Lieutenant Schmidt assaulted the plaintiffs causing them to suffer serious physical injuries.

31. At no point in time did plaintiffs commit a crime, nor did the defendant police officers have any reason to believe plaintiffs committed any crime.

32. Nevertheless, the defendant police officers unlawfully handcuffed and arrested plaintiffs, without probable cause or legal justification.

33. Plaintiffs were then unlawfully placed in an NYPD vehicle and transported to the 23rd precinct.

34. When plaintiffs arrived at the 23rd precinct, he was fingerprinted, photographed and then placed into a holding cell.

35. While at the 23rd precinct, plaintiff, Jose Castro was assaulted again by the defendant police officers in the bathroom in at the 23rd precinct.

36. After several hours in a holding cell at the 23rd precinct, plaintiffs were transported to Manhattan Central Booking.

37. After approximately 22 hours in police custody, on June 27, 2012, at approximately 10:00 p.m., plaintiffs were arraigned and were released on their own recognizance.

38. Plaintiffs were unlawfully charged with Disorderly Conduct among other things.

39. Thereafter, all of the charges against plaintiffs were dismissed.

40. Some of the police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable assault, battery, arrest and imprisonment, and malicious prosecution of plaintiffs.

41. The false arrest, false imprisonment, assault, battery, and use of excessive force by the individually named defendants caused plaintiff to sustain serious physical, psychological, and emotional injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

42. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned and maliciously prosecuted without probable cause in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

47. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

48. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Failure to Intervene

50. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

52. Defendants failed to intervene to prevent the unlawful conduct described herein.

53. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of her safety, and was humiliated and subject to other physical constraints.

54. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

55. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligence

56. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Defendants owed a duty of care to plaintiffs.

58. Defendants breached that duty of care by falsely arresting, falsely imprisoning, maliciously prosecuting, and assaulting and battering plaintiffs.

59. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

60. All of the foregoing occurred without any fault or provocation by plaintiffs.

61. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

62. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

63. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs, Tamara Ortiz, Jose Castro, Marc Charlotten. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed plaintiffs by the laws and Constitution of the State of New York.

65. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.

66. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

67. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Assault

68. Plaintiffs repeat and reallege paragraphs 1 through 67 as if fully set forth herein.

69. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that such acts caused apprehension of such contact in the plaintiffs.

70. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

71. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Battery

72. Plaintiffs repeat and reallege paragraphs 1 through 71 as if fully set forth herein.

73. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiffs, when they, in a hostile and/or offensive manner struck plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.

74. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

75. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

76. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants in punching plaintiffs in the face, body, and kicking and punching plaintiffs was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

79. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

80. Plaintiffs repeat and reallege paragraphs 1 through 79 as if fully set forth herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

85. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

86. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

87. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

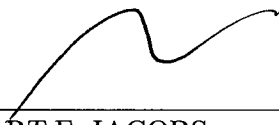
JURY DEMAND

88. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs TAMARA ORTIZ, JOSE CASTRO, and MARC CHARLOTTEN demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 25, 2013

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

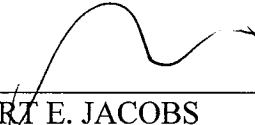
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
September 25, 2013


STUART E. JACOBS